

Pradeep Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 September 2019 · WRIT - C No. 26380 of 2019 · **Writ dismissed; relegated to CGRF under Clause 7.10.**

HEADNOTE

A second writ challenging a January 2019 electricity bill of Rs.20,64,080 and the Executive Engineer's 29 April 2019 refusal of rebate on surcharge and interest was dismissed for alternative remedy. Disputes as to correctness of the bill, recovery, or the validity of that order are to be taken to the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Pradeep Singh challenged a 5 January 2019 electricity bill of Rs.20,64,080 and recovery in pursuance thereof. He had earlier filed Writ-C No. 3524 of 2019, which was disposed of by consent on 31 January 2019 with a direction to the Executive Engineer to consider his 18/19 January 2019 representation, which concerned surcharge and interest of Rs.5,50,000. By order dated 29 April 2019 the Executive Engineer held that the petitioner was not entitled to any rebate on interest and surcharge. This writ petition challenged that order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF alternative remedy for billing, surcharge and interest disputes

HOLDING

A consumer's challenge to the correctness of an electricity bill and recovery thereon, or to an Executive Engineer's order deciding a representation against surcharge and interest, is to be agitated before the Consumer Grievance Redressal Forum constituted under Clause 7.10 of the U.P. Electricity Supply Code, 2005. The High Court will not exercise extraordinary writ jurisdiction where that alternative remedy is available. ¶ 6-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE 05.01.2019 BILL, RECOVERY THEREON, AND VALIDITY OF THE EXECUTIVE ENGINEER'S 29.04.2019 ORDER ON SURCHARGE AND INTEREST

left to the Consumer Grievance Redressal Forum under Clause 7.10 ¶ 6-8